

Professional Conduct and Ethics

22 TAC 535.220 · The ethics rule for Texas inspectors · For the TREC state exam (25 questions, pass at 75%)

One rule, and the most quotable section in the whole Law module. Its opening sets the standard: the responsibility of an inspector performing independent inspections imposes **integrity beyond that of ordinary commerce**. Every prohibition below follows from that sentence.

The standard itself

- Maintain a high standard of **professionalism, independence, objectivity and fairness** while performing inspections in a real estate transaction.
- Conduct business so that clients are assured of your **independence from outside influence and interests** that might compromise a fair and impartial opinion.

Compensation and conflicts — what you may not do

- May not inspect where **compensation or future referrals depend on the reported findings**, or on the **closing or settlement** of the transaction.
- May not **pay or accept a fee** for a referral, for inclusion on a list of inspectors, or for inclusion on a preferred-provider list.
- May not receive consideration for referring **non-settlement** services without the **client's written consent**.
- Accepting a fee from a settlement service provider may also violate the federal **RESPA**.

The twelve-month repair rule

An inspector **may not accept employment to repair, replace, maintain or upgrade** any system or component of a property they inspected, for **12 months following the inspection**. If one number from this file appears on your exam, it is **twelve months**.

Confidentiality

- May not disclose inspection results or client information **without the client's prior approval**.
- Narrow exception: an **immediate safety hazard**, where disclosure is feasible.

Duties to the Commission and the profession

- Must **report known violations** of the rules to the Commission.
- Must cooperate professionally with other inspectors and related professionals.
- Must provide the required **Consumer Protection Notice**.

Check Yourself

You inspected a house in March. In August the buyer asks you to replace the water heater you wrote up. May you take the work?

No. The bar runs for 12 months after the inspection, so you could not accept it until March of the following year.

A real estate agent offers to put you on their preferred-inspector list for a small annual fee. May you pay it?

No. Paying for inclusion on a list of inspectors or preferred providers is prohibited, and may also breach RESPA.

The buyer's agent phones asking what you found. What do you say?

Nothing, without the client's prior approval. The only exception is an immediate safety hazard.

Verified against trec.texas.gov and the Texas Administrative Code on 22 August 2026. TREC rules change — re-check any figure before your exam date at trec.texas.gov/rules-and-laws.